



Scottish Transport Group (Castle Bay Pier) Order Confirmation Act 1976

CHAPTER xxxviii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

SCOTTISH TRANSPORT GROUP (CASTLE BAY PIER)

PART I

PRELIMINARY

1. Short title.
2. Interpretation.

PART II

WORKS

3. Power to construct works.
4. Subsidiary works.
5. Power to deviate.
6. Fine for obstructing work.
7. Tidal works not to be executed without approval of Secretary of State.
8. Survey of tidal works.
9. Provision against danger to navigation.
10. Abatement of works abandoned or decayed.
11. Lights on tidal works during construction.
12. Permanent lights on tidal works.
13. Works to form part of pier undertaking.

**c. xxxviii Scottish Transport Group (Castle Bay Pier)
Order Confirmation Act 1976**

PART III

LIMITS AND CHARGES

Section

14. Pier limits.
15. Charges for pier facilities.

PART IV

MISCELLANEOUS

16. Crown rights.
17. Saving for Commissioners of Northern Lighthouses.
18. Saving for Dumping at Sea Act 1974.
19. Saving for Coast Protection Act 1949.
20. Saving for town and country planning.
21. Costs of Order.

Scottish Transport Group (Castle Bay Pier) c. xxxviii
Order Confirmation Act 1976

9

ELIZABETH II



1976 CHAPTER xxxviii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Scottish Transport Group (Castle Bay Pier).

[22nd December 1976]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Scottish Transport Group Short title. (Castle Bay Pier) Order Confirmation Act 1976.

SCHEDULE

SCOTTISH TRANSPORT GROUP (CASTLE BAY PIER)

Provisional Order to authorise the Scottish Transport Group to carry out works at their pier at Castle Bay in the Island of Barra within the Western Isles Islands Area to extend the limits of the pier; and for other purposes.

1968 c. 73. Whereas by the Transport Act 1968 the Scottish Transport Group (hereinafter referred to as "the Group") were constituted with power (inter alia) to operate harbours:

1880 c. lxxxv. And whereas by the Castle Bay Pier Order 1880 Mrs. Emily Eliza Steel Pringle or Gordon of Cluny in the County of Aberdeen, her heirs, assignees, and successors were authorised to construct and maintain a pier and works at Castle Bay in the island of Barra in the county of Inverness:

And whereas by the Castle Bay Pier Order 1942 the county council of Inverness were authorised to demolish the said pier and to construct a new pier and quay wall at Castle Bay aforesaid:

And whereas the said pier, quay wall and certain lands and works are now vested in the Group:

And whereas it is expedient that the Group should be authorised to carry out the works hereinafter described for the purpose of providing a vehicle ferry terminal and for the improvement of the pier and the facilities thereat:

And whereas it is expedient that the limits of the pier should be extended as in this Order provided:

And whereas it is expedient that the further powers mentioned in this Order should be conferred upon the Group:

And whereas estimates have been prepared by the Group with respect to the following purposes and such estimates are as follows:—

A vehicle marshalling yard constructed partly by excavation and partly on regraded ground linking up with the access to the existing pier and including the demolition of certain existing buildings	£ 35,000
Building up and infilling of part of the land foreshore and seabed in rubble mound and constructing thereon a causeway forming an approach to the link bridge work	106,000
An adjustable steel link bridge, linking any ferry ship to the approach including the machinery for lifting and lowering the end adjoining a ferry ship	138,000
Fixed structures partly of openwork and partly of solid construction forming lifting points for the link bridge work	147,000

And whereas plans and sections showing the lines, situations and levels of the works to be authorised under the powers of this Order were in March, 1975, duly deposited with the sheriff clerk of the county of Inverness and such plans and sections are in this Order respectively called the deposited plans and the deposited sections:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936: 1936 c. 52.

Now therefore in pursuance of the powers contained in the said last-mentioned Act the Secretary of State orders as follows:—

PART I
PRELIMINARY

1.—(1) This Order may be cited as the Scottish Transport Group Short title. (Castle Bay Pier) Order 1976.

(2) The Castle Bay Pier Orders 1880 and 1942 and this Order may be cited together as the Castle Bay Pier Orders 1880 to 1976.

(3) Except so far as may be inconsistent with or repugnant to the purposes of this Order, the Castle Bay Pier Orders 1880 and 1942 and this Order shall be construed and read together as one Order.

2.—(1) In this Order the several words and expressions to which meanings are assigned by any Act wholly or partially incorporated with this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction, and in this Order unless the context otherwise requires— Interpretation.

“ Act of 1847 ” means the Harbours, Docks and Piers Clauses Act 1847; 1847 c. 27.

“ deposited plans ” and “ deposited sections ” mean respectively the plans and sections deposited in connection with this Order;

“ enactment ” means any Act, whether public general or local, and any order made thereunder and any provision in any Act or in any such order;

“ existing ” means existing at the commencement of this Order;

“ the Group ” means the Scottish Transport Group;

“ level of high water ” means the level of mean high-water springs;

“ limits of deviation ” means the limits of deviation shown on the deposited plans;

“ Order of 1880 ” means the Castle Bay Pier Order 1880;

“ pier ” means the existing pier and quay wall at Castle Bay belonging to the Group;

“ pier limits ” means the limits within which the Group exercise jurisdiction as defined in section 14 (Pier limits) of this Order;

“ pier undertaking ” means the undertaking of the Group in connection with the pier and the works;

c. xxxviii *Scottish Transport Group (Castle Bay Pier)
Order Confirmation Act 1976*

PART I
—cont.

“tidal work” means so much of any work authorised by this Order as is on, under or over tidal waters or tidal lands below the level of high water;

“works” means the works authorised by this Order or as the case may require any part thereof.

(2) Unless the context otherwise requires, any reference in this Order to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by any subsequent enactment including this Order.

PART II
WORKS

Power to
construct
works.

3.—(1) Subject to the provisions of this Order, the Group may in the parish of Barra in the island of Barra within the Western Isles Islands Area and on the foreshore and bed of the sea adjacent thereto and in the situations and lines shown on the deposited plans and within the limits of deviation and according to the levels shown on the deposited sections construct and maintain the works hereinafter described, together with all necessary and proper works and conveniences connected therewith or incidental thereto, that is to say—

Work No. 1 A vehicle marshalling yard to be constructed partly by excavation (as shown broken-hatched on the deposited plans) from the hinterland and partly on regraded ground and extending generally from the excavated portion south-westward to the line of the existing levelling above mean high-water springs and linking up with the access to the existing pier and including the demolition of certain existing buildings.

Work No. 2 An approach causeway to the link bridge Work No. 3 hereinafter described commencing in the vehicle marshalling area Work No. 1 hereinbefore described at a point 72.56 metres (238 feet) or thereabouts measured in a straight line north-north-westward of the north-west corner of the root of the existing pier and proceeding in a curved line for a distance of 43.59 metres (143 feet) or thereabouts to a point 33.54 metres (110 feet) or thereabouts measured in a straight line from the point of commencement to be constructed by building up and infilling the land, foreshore and the bed of the sea, shown hatched on the deposited plans, with rubble mound and thereby reclaiming part of the foreshore and seabed.

Work No. 3 An adjustable steel link bridge commencing at a width of 4.5 metres (15 feet) or thereabouts at the termination of Work No. 2 and extending generally southwards for a distance of 36 metres (118.08 feet) or thereabouts and there terminating at a width of 7.62 metres (25 feet) or thereabouts to form a link between any ferry ship berthed at the existing pier and the vehicle assembly area Work No. 1 by way of the causeway Work No. 2 and including all machinery for lifting and lowering the end adjoining the ferry ship.

PART II
—cont.

Work No. 4 Fixed structures (being dolphins of partly solid and partly openwork construction) forming lifting points and guides for lifting and lowering the link bridge Work No. 3 hereinbefore described and situated on a line 6 metres (19·68 feet) or thereabouts from and parallel to the termination of the said Work No. 3 the first of such dolphins commencing 10·67 metres (35 feet) or thereabouts west of the centre of the said link bridge and occupying a surface area of 48·4 square metres (520 square feet) or thereabouts the second dolphin to the east of the said link bridge terminating 10·67 metres (35 feet) or thereabouts to the east thereof and occupying an area of 19·52 square metres (210 square feet) or thereabouts.

(2) The Group may within the limits of deviation renew, enlarge and alter temporarily or permanently the works.

4. Subject to the provisions of this Order, the Group may within the limits of deviation from time to time erect, construct and maintain, whether temporarily or permanently, all such necessary works and conveniences as may be requisite or expedient for the purposes of or in connection with the construction, maintenance and use of the works. Subsidiary works.

5. Subject to the provisions of this Order, in constructing the works the Group may deviate laterally from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 3 metres (10 feet) upwards and to such extent downwards as may be found necessary or convenient. Power to deviate.

6.—(1) Any person who wilfully obstructs any person acting under the authority of the Group in setting out the lines of the works or who damages, moves or removes any pole, stake, station point or bench mark established for the purpose of such setting out shall for every such offence be liable to a fine not exceeding fifty pounds. Fine for obstructing work.

(2) Proceedings for any offence under this section or for the recovery of any fine thereunder may be brought in any court of summary criminal jurisdiction.

7.—(1) A tidal work shall not be constructed, renewed, enlarged or altered except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by the Secretary of State before the work is begun. Tidal works not to be executed without approval of Secretary of State.

(2) If a tidal work is constructed, renewed, enlarged or altered in contravention of this section or of any condition or restriction imposed under this section—

(a) the Secretary of State may by notice in writing require the Group at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if on the expiration of thirty days from the date when the notice is served upon the Group they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

c. xxxviii *Scottish Transport Group (Castle Bay Pier)*
Order Confirmation Act 1976

PART II
 —cont.

(b) if it appears to the Secretary of State urgently necessary so to do, he may himself remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be a debt due from the Group to the Crown and shall be recoverable accordingly.

Survey of
 tidal works.

8. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work constructed by the Group or of the site upon which it is proposed to construct the work and any expenditure incurred by the Secretary of State in any such survey and examination shall be a debt due from the Group to the Crown and shall be recoverable accordingly.

Provision
 against danger
 to navigation.

9.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof, the Group shall forthwith notify the Commissioners of Northern Lighthouses and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

(2) If the Group fail to comply in any respect with any provision of this section, they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Abatement of
 works
 abandoned or
 decayed.

10.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State may by notice in writing require the Group at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

(2) Where a work authorised by this Order and consisting partly of a tidal work and partly of works on or over land above the level of high water is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Group they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be a debt due from the Group to the Crown and shall be recoverable accordingly.

Lights on
 tidal works
 during
 construction.

11.—(1) The Group shall at or near a tidal work during the whole time of the construction, renewal, enlargement or alteration thereof exhibit, every night from sunset to sunrise, such lights, if any, and take such other steps for the prevention of danger to navigation as the Secretary of State shall from time to time direct.

(2) If the Group fail to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

PART II
—cont.

12.—(1) After the completion of a tidal work the Group shall at the outer extremity thereof every night from sunset to sunrise exhibit such lights, if any, and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

(2) If the Group fail to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

13.—(1) The works shall for all purposes form part of the pier undertaking and all byelaws, rules and regulations of the Group for the time being in force relating to the pier undertaking shall be applicable and shall apply to the works and may be enforced by the Group accordingly.

(2) The works shall be deemed for all purposes to be within the parish of Barra in the island of Barra within the Western Isles Islands Area.

PART III

LIMITS AND CHARGES

14. As from the commencement of this Order section 2 (Limits of Order) of the Order of 1880 shall be read and have effect as if for the words " fifty yards " there were substituted the words " 200 metres (218.72 yards) ".

15.—(1) The Group may demand, take and recover such reasonable charges for services and facilities provided by them at or in connection with the pier as they may from time to time determine.

(2) A list showing the charges payable from time to time under subsection (1) of this section shall be open during reasonable hours for inspection by any person without charge at the pier office of the Group and copies of the list shall be kept for sale at that office at a price not exceeding ten pence for each copy.

(3) Sections 7 to 12 and section 17 of the Order of 1880 are hereby repealed.

PART IV

MISCELLANEOUS

16. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained shall authorise the Group to take, use or in any way interfere with any portion of the shore or bed of the sea or any river, channel, creek, bay or estuary, or any land, heritages, subjects or rights of whatsoever description—

PART IV
 —cont.

(a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or

(b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

Saving for
 Commissioners
 of Northern
 Lighthouses.

17. Nothing in this Order shall prejudice or derogate from, or in any way alter, affect or interfere with, the jurisdiction or authority of the Commissioners of Northern Lighthouses.

Saving for
 Dumping at
 Sea Act 1974.
 1974 c. 20.

18. Nothing in this Order shall affect the operation of the Dumping at Sea Act 1974.

Saving for
 Coast
 Protection
 Act 1949.
 1949 c. 74.

19. Nothing in this Order shall exempt the Group or any other person from the provisions of Part I of the Coast Protection Act 1949.

Saving for
 town and
 country
 planning.
 1972 c. 52.

20.—(1) Section 274 of the Town and Country Planning (Scotland) Act 1972 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session of Parliament held during the regnal years 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Order as if it had been passed during that session; and accordingly the Town and Country Planning (Scotland) Act 1972 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Order.

1975 No. 679
 (s. 107).

(2) In their application to development authorised by any provision of this Order, article 3 of, and class X in Schedule 1 to, the Town and Country Planning (General Development) (Scotland) Order 1975 (which permit development authorised by any local or private Act or by any order approved by both Houses of Parliament, being an Act or order designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by such provision were limited to development begun within five years after the coming into force of that provision.

(3) In this section the reference to article 3 of, and class X in Schedule 1 to, the Town and Country Planning (General Development) (Scotland) Order 1975 includes a reference to corresponding provisions of any general order superseding that order made under section 21 of the Town and Country Planning (Scotland) Act 1972 or any corresponding provision of an Act repealing that section.

Costs of
 Order.

21. All costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Group.

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